[Public Land Order 3128]

(Anchorage 057782, 057352)

ALASKA

Withdrawal for Use of Alaska Railroad; Revocation of Executive Order No. 8102, in Part

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Subject to valid existing rights, the following described public land is hereby withdrawn from all forms of appropriation under the public land laws, including the mining and mineral leasing laws, and reserved under jurisdiction of the Secretary of the Interior for use of the Alaska Railroad for industrial purposes:

ANCHORAGE AREA

Beginning at a point which bears west 625.29 feet from C ¼ corner of sec. 7, T. 13 N., R. 3 W., S.M.; thence West, 569.50 feet; N. 2°30′ W., 111.0 feet; N. 56°30′ E., 230 feet; N. 67°30′ E., 108.5 feet; N. 79°25′ E., 113 feet; N. 87°10′ E., 161.5 feet; S. 1°25′ E., 308.7 feet to the point of beginning.

Containing 3.2 acres.

2. Executive Order No. 8102 of April 29, 1939, reserving lands for use of the War Department, is hereby revoked so far as it affects the lands described in paragraph 1 of this order.

3. This order is subject to the use by the Department of the Army of a 30-foot strip for a power line and communication cable as shown on maps filed with the Manager of the Land Office, Bureau of Land Management, Anchorage, Alaska.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

JULY 9, 1963.

[F.R. Doc. 63-7372; Filed, July 12, 1963; 8:47 a.m.]

Title 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[FCC 63-616]

PART 3—RADIO BROADCAST SERVICES

PART 4—EXPERIMENTAL, AUXILIARY, AND SPECIAL BROADCAST SERVICES

Emergency Broadcast System

At a session of the Federal Communications Commission held at its offices in Washington, D.C., on the 3d day of July 1963;

The Commission having under consideration a letter from the Department of Defense to this Commission, dated April 23, 1962, stating (1) with certain exceptions, not pertinent here, that there is no longer a requirement to control electromagnetic radiation (CONELRAD) so as to prevent the use of radio transmitters as navigational aids to an enemy and (2) that the improvement and strengthening of the Emergency Broadcast System is a matter of urgency; that under emergency conditions, the activation of the system must be accomplished with the utmost rapidity; a nationwide broadcast capability must be available to the President and other Federal officials immediately following the public sounding of an attack warning, and

It appearing, that the Commission, by order released May 24, 1963, abolished Project CONELRAD, effective June 30, 1963, and established simultaneously an Office of Emergency Communications to carry out the emergency preparedness functions which were placed upon the Commission by Executive Order 11092.

It further appearing, that there is a need to establish immediately rules governing the Emergency Broadcast System to provide a nationwide broadcast capability for the President or other Federal officials to communicate with the general public immediately upon the public sounding of an attack warning; and

It further appearing, in view of the need for immediate adoption of the rules for the purposes of national defense that notice and public procedure would be contrary to the public interest; and, therefore, section 4 of the Administrative Procedure Act is inapplicable; and

It further appearing, that authority for the rules herein adopted is contained in sections 4(i), 303(r), 606 (c) and (d), of the Communications Act of 1934, as amended; and Executive Order 11092;

It is ordered, Effective August 5, 1963, that Parts 3 and 4 of the Commission's rules are amended as set forth below.

(Secs. 4, 303, 606; 48 Stat. 1066, 1082, 1104, as amended; 47 U.S.C. 154, 303, 606. E.O. 11092, 28 F.R. 1847)

Released: July 9, 1963.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

1. In Part 3, Subpart G (§§ 3.901–3.980) is revised to read as follows:

Subpart G—Emergency Broadcast System

SCOPE AND OBJECTIVE

3.901 Scope of subpart.
3.902 Object of subpart.

DEFINITIONS

3.911 Emergency Broadcast System (EBS).
3.912 National Defense Emergency Authorization (NDEA).
3.913 Emergency Action Notification.
3.914 Emergency Action Termination.
3.915 Emergency Action Condition.
3.916 Emergency Broadcast System Plan.

EMERGENCY ACTIONS

3.921 Emergency Action Notification.
3.922 Reception of an Emergency Action Notification.
3.923 Operation during an Emergency Action Condition.

EMERGENCY ACTION CONDITION TERMINATION

3.931 Notification of termination of Emergency Action Condition.
3.932 Termination message.

SYSTEM OPERATION

3.941 Procedure.
3.942 Participation.

TESTS

Sec.
3.951 Emergency Action Notification System Tests.

WEATHER WARNING

3.961 Emergency Weather Warnings.

NETWORK CONNECTION

3.971 Participation by telephone companies.

AUTHORITY: §§ 3.901 to 3.971 issued under secs. 4, 303, 606; 48 Stat. 1066, 1082, 1104, as amended; 47 U.S.C. 154, 303, 606. E.O. 11092, 28 F.R. 1847.

SUBPART G—EMERGENCY BROADCAST SYSTEM

SCOPE AND OBJECTIVE

§ 3.901 Scope of subpart.

This subpart applies to all broadcast stations governed by this part and is for the purpose of providing for operation of certain stations located within the United States, including Guam, Puerto Rico, and the Virgin Islands, during periods of a National Emergency.

§ 3.902 Object of subpart.

The object of this subpart is to fulfill national security requirements while at the same time providing for transmission of vital information to the public.

DEFINITIONS

§ 3.911 Emergency Broadcast System (EBS).

The Emergency Broadcast System consists of broadcast stations and interconnecting facilities which have been authorized by the Commission to operate in a controlled manner during a war, threat of war, state of public peril or disaster, or other national emergency.

§ 3.912 National Defense Emergency Authorization (NDEA).

An authorization issued by the Commission permitting controlled operation of a station operating in the Radio Broadcast Services during an Emergency Action Condition.

§ 3.913 Emergency Action Notification.

The Emergency Action Notification is the notice to stations in the Radio Broadcast Services to operate in accordance with the Emergency Broadcast System Plan.

§ 3.914 Emergency Action Termination.

The Emergency Action Termination is the notice to stations in the Radio Broadcast Services to discontinue controlled operations imposed by an outstanding Emergency Action Notification and return to normally licensed operations.

§ 3.915 Emergency Action Condition.

The condition which exists after the the transmission of an Emergency Action Notification and before the transmission of the Emergency Action Termination.

§ 3.916 Emergency Broadcast System Plan.

The Emergency Broadcast System Plan is the document containing the detailed description of how stations operating in the Radio Broadcast Services will